

**BEFORE THE
FEDERAL MARITIME COMMISSION**

MOSES DAMISA, *Complainant*

v.

DOCKET NO. 1967(F)

TRANS ATLANTIC SHIPPING LLC, *Respondent*.

**RESPONDENT TRANS ATLANTIC SHIPPING, LLC’S OPPOSED MOTION FOR
LEAVE TO FILE SUR-REPLY TO COMPLAINANT’S MOTION TO DISMISS
WITHOUT PREJUDICE**

Respondent Trans Atlantic Shipping, LLC (“TAS” or “Respondent”), by and through its undersigned counsel, hereby files this Motion for Leave to File Sur-Reply to Complainant Moses Damisa’s (“Complainant”) Motion to Dismiss Without Prejudice, and respectfully shows the Court as follows:

1. TAS submits that the prejudice it will suffer if not allowed to respond to Complainant’s erroneous assertion of facts and law and new arguments raised by Complainant for the first time in his Reply, the ongoing global Covid-19 pandemic and related elevated shipping costs represent extraordinary circumstances for which the Commission should permit this sur-reply to allow TAS to defend its interest.
2. TAS requests such leave to: (i) clarify the record regarding erroneous assertions of fact and law; and (ii) respond to new arguments raised by Complainant for the first time in his Reply to TAS’s Response in opposition to Complainant’s motion to dismiss.
3. TAS has attached its proposed Sur-reply as Exhibit A and files it concurrently with the present motion for leave. TAS asks that this filing be deemed good and proper by the honorable Administrative Law Judge or Presiding Officer.

TAS prays that its Motion for Leave to File Sur-reply be granted, that its filing of such Sur-reply be deemed good and proper and timely filed, and that it be granted any such further relief as may be just and proper.

Respectfully submitted,

THE MOONEY LAW FIRM, LLC

/s/ Shanshan Liang
Shanshan (Shannon) Liang, of-counsel
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CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **MOTION FOR LEAVE TO FILE SUR-REPLY TO COMPLAINANT'S MOTION TO DISMISS WITH PREJUDICE** was sent to the below-mentioned counsel via email on August 18, 2021.

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/s/ Shanshan Liang
Shanshan Liang